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February 27, 2025

SENATE BILL NO. 697

By: Coleman of the Senate

and

Marti of the House

An Act relating to medical marijuana licenses; 63 O.S. 2021, Section 427.16, as last amended by Section 140, Chapter 452, O.S.L. 2024 (63 O.S. Supp. 2024, Section 427.16), which relates to medical marijuana transporter license; establishing certain requirements for license issuance; updating statutory language; allowing certain actions by certain licensee; requiring certain information to be documented in certain inventory manifest prior to certain action; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 427.16, as last amended by Section 140, Chapter 452, O.S.L. 2024 (63 O.S. Supp. 2024, Section 427.16), is amended to read as follows:

Section 427.16. A. There is hereby created a medical marijuana transporter license as a category of the medical marijuana business license.

B. Pursuant to Section 424 of this title, the Oklahoma Medical Marijuana Authority shall issue a medical marijuana transporter license to licensed medical marijuana commercial growers, processors

1 and dispensaries upon issuance of such licenses and upon each
2 renewal. Medical marijuana transporter licenses shall also be
3 issued to licensed medical marijuana research facilities, medical
4 marijuana education facilities and medical marijuana testing
5 laboratories upon issuance of such licenses and upon each renewal.

6 C. A medical marijuana transporter license may also be issued
7 to qualifying applicants who are registered with the Secretary of
8 State and otherwise meet the requirements for a medical marijuana
9 business license set forth in the Oklahoma Medical Marijuana and
10 Patient Protection Act and the requirements set forth in this
11 section to provide logistics, distribution and storage of medical
12 marijuana, medical marijuana concentrate and medical marijuana
13 products.

14 D. A medical marijuana transporter license shall be valid for
15 one (1) year and shall not be transferred with a change of
16 ownership. A licensed medical marijuana transporter shall be
17 responsible for all medical marijuana, medical marijuana concentrate
18 and medical marijuana products once the transporter takes control of
19 the product.

20 E. A transporter license shall be required for any person or
21 entity to transport or transfer medical marijuana, medical marijuana
22 concentrate or medical marijuana products from a licensed medical
23 marijuana business to another medical marijuana business, or from a
24

1 medical marijuana business to a medical marijuana research facility
2 or medical marijuana education facility.

3 F. A medical marijuana transporter licensee may contract with
4 multiple licensed medical marijuana businesses.

5 G. A medical marijuana transporter may maintain a licensed
6 premises to temporarily store medical marijuana, medical marijuana
7 concentrate and medical marijuana products and to use as a
8 centralized distribution point. A medical marijuana transporter may
9 store and distribute medical marijuana, medical marijuana
10 concentrate and medical marijuana products from the licensed
11 premises. The licensed premises shall meet all security
12 requirements applicable to a medical marijuana business. The
13 Authority shall issue licenses upon proper application by a licensee
14 and determination by the Authority that the proposed site and
15 facility are physically and technically suitable.

16 H. A medical marijuana transporter licensee shall use the seed-
17 to-sale tracking system developed pursuant to the Oklahoma Medical
18 Marijuana and Patient Protection Act to create ~~shipping~~ inventory
19 manifests documenting the transport or temporary storage of medical
20 marijuana, medical marijuana concentrate and medical marijuana
21 products throughout the state.

22 I. A licensed medical marijuana transporter may maintain and
23 operate one or more warehouses in the state to handle medical
24 marijuana, medical marijuana concentrate and medical marijuana

1 products, provided they possess a valid, unexpired medical marijuana
2 transport license and have applied for and received a permit for
3 each warehouse location. The Authority shall issue an annual permit
4 for each warehouse location operated by a licensee that is equal to
5 the annual medical marijuana transport license term, and there shall
6 be no limit to the number of permits issued under a medical
7 marijuana transporter license. A permit shall be issued only upon
8 proper application by a licensee and determination by the Authority
9 that the proposed site and facility are physically and technically
10 suitable. Upon a finding that the proposed site and facility are
11 not physically or technically suitable, the Authority shall deny the
12 permit. Each warehouse location shall be ~~registered~~ approved and
13 inspected by the Authority prior to its use. Medical marijuana
14 transporter warehouses that are licensed and approved by the
15 Authority may temporarily store medical marijuana, medical marijuana
16 concentrate, and medical marijuana products, provided all temporary
17 storage is documented, tracked, and traceable.

18 J. With the exception of a lawful transfer between medical
19 marijuana businesses who are licensed to operate at the same
20 physical address, all medical marijuana, medical marijuana
21 concentrate and medical marijuana products shall be transported:

22 1. In vehicles equipped with Global Positioning System (GPS)
23 trackers;
24

1 2. In a locked container and clearly labeled "Medical Marijuana
2 or Derivative"; and

3 3. In a secured area of the vehicle that is not accessible by
4 the driver during transit.

5 K. A transporter agent may possess marijuana at any location
6 while the transporter agent is transferring marijuana to or from a
7 licensed medical marijuana business, licensed medical marijuana
8 research facility or licensed medical marijuana education facility.
9 The Authority shall administer the provisions of this section and
10 the Authority, the Oklahoma State Bureau of Narcotics and Dangerous
11 Drugs Control, the Oklahoma State Bureau of Investigation, and the
12 Attorney General shall have the authority to enforce the provisions
13 of this section concerning transportation.

14 L. The Authority shall issue a transporter agent license to
15 individual agents, employees, officers or owners of a transporter
16 license in order for the individual to qualify to transport medical
17 marijuana, medical marijuana concentrate or medical marijuana
18 products.

19 M. The annual fee for a transporter agent license shall be
20 Twenty-five Dollars (\$25.00) and shall be paid by the transporter
21 license-holder or the individual applicant. Transporter agent
22 license reprints shall be Twenty Dollars (\$20.00).

23 N. The Authority shall issue each transporter agent a registry
24 identification card within thirty (30) days of receipt of:

1. The name, address and date of birth of the person;
2. Proof of current state residency;
3. Proof of identity as required for a medical marijuana business license;
4. Possession of a valid state-issued driver license;
5. Verification of employment with a licensed transporter;
6. The application and affiliated fee; and
7. A copy of the criminal background check conducted by the Oklahoma State Bureau of Investigation, paid for by the applicant.

O. If the transporter agent application is denied, the Authority shall notify the transporter in writing of the reason for denying the registry identification card.

P. A registry identification card for a transporter shall expire one (1) year after the date of issuance or upon notification from the holder of the transporter license that the transporter agent ceases to work as a transporter.

Q. The Authority may revoke the registry identification card of a transporter agent who knowingly violates any provision of this section, and the transporter is subject to any other penalties established by law for the violation.

R. The Authority may revoke or suspend the transporter license of a transporter that the Authority determines knowingly aided or facilitated a violation of any provision of this section, and the

1 license holder is subject to any other penalties established in law
2 for the violation.

3 S. Vehicles used in the transport of medical marijuana or
4 medical marijuana product shall be:

- 5 1. Insured at or above the legal requirements in this state;
- 6 2. Capable of securing medical marijuana during transport; and
- 7 3. In possession of a shipping container as defined in Section
8 427.2 of this title capable of securing all transported products.

9 T. Prior to the transport of any medical marijuana, medical
10 marijuana concentrate or medical marijuana products, an inventory
11 manifest shall be prepared at the origination point of the medical
12 marijuana. The inventory manifest shall include the following
13 information:

- 14 1. For the origination point of the medical marijuana:
 - 15 a. the licensee number for the commercial grower,
16 processor or dispensary,
 - 17 b. address of origination of transport, and
 - 18 c. name and contact information for the originating
19 licensee;
- 20 2. For temporary storage at a medical marijuana transporter
21 licensed premises or warehouse location that is licensed and
22 approved by the Authority:
 - 23 a. the license number for the commercial grower,
24 processor, or dispensary,

- b. the address of origination of transport,
- c. name and contact information for the originating licensee, and
- d. the license number, physical address, and name and contact information of the medical marijuana transporter licensed premises or warehouse location and notation that the medical marijuana, medical marijuana concentrates, and medical marijuana products are being temporarily stored;

3. For the end recipient license holder of the medical marijuana:

- a. the license number for the dispensary, commercial grower, processor, research facility or education facility destination,
- b. address of the destination, and
- c. name and contact information for the destination licensee;

~~3.~~ 4. Quantities by weight or unit of each type of medical marijuana product contained in transport;

~~4.~~ 5. The date of the transport and the approximate time of departure;

~~5.~~ 6. The arrival date and estimated time of arrival;

~~6.~~ 7. Printed names and signatures of the personnel accompanying the transport; and

~~7.~~ 8. Notation of the transporting licensee.

U. 1. A separate inventory manifest shall be prepared for each licensee receiving the medical marijuana.

2. The transporter agent shall provide the other medical marijuana business with a copy of the inventory manifest at the time the product changes hands and after the other licensee prints his or her name and signs the inventory manifest.

3. A receiving licensee shall refuse to accept any medical marijuana, medical marijuana concentrate or medical marijuana products that are not accompanied by an inventory manifest.

4. Originating and receiving licensees, including medical marijuana transporter warehouses temporarily storing medical marijuana, medical marijuana concentrate, and medical marijuana products, shall maintain copies of inventory manifests and logs of quantities of medical marijuana received for seven (7) years from date of receipt.

SECTION 2. This act shall become effective November 1, 2025.

COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
February 27, 2025 - DO PASS